

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3849

By: Roberts and Hill of the
House

5
6 and

7 Coleman of the Senate

8
9 AS INTRODUCED

10 An Act relating to the Oklahoma Juvenile Code;
11 amending 10A O.S. 2021, Sections 2-10-101 and 2-10-
12 102, as amended by Section 11, Chapter 347, O.S.L.
13 2024 (10A O.S. Supp. 2025, Section 2-10-102), which
14 relate to the Oklahoma Mentoring Children of
15 Incarcerated Parents Program; modifying purpose;
16 modifying who may receive mentoring services;
17 modifying applicant requirements; modifying time
18 period in which the Commission shall award grants for
19 specific purpose; and providing an effective date.

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21
22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 10A O.S. 2021, Section 2-10-101,
24 is amended to read as follows:

25 Section 2-10-101. A. The Oklahoma Commission on Children and
26 Youth shall establish the Oklahoma Mentoring Children of
27 Incarcerated Parents Program.

28 B. The purpose of the Oklahoma Mentoring Children of
29 Incarcerated Parents Program is to provide effective intervention

1 services through ~~one-to-one~~ mentoring relationships to children of
2 incarcerated parents ~~who either:~~

3 ~~1. Are in the custody of the Office of Juvenile Affairs and~~
4 ~~currently placed outside the home; or~~

5 ~~2. Have been identified by the Office of Juvenile Affairs as~~
6 and to children at risk of becoming involved in the juvenile justice
7 system.

8 SECTION 2. AMENDATORY 10A O.S. 2021, Section 2-10-102,
9 as amended by Section 11, Chapter 347, O.S.L. 2024 (10A O.S. Supp.
10 2025, Section 2-10-102), is amended to read as follows:

11 Section 2-10-102. ~~1.~~ A. The Oklahoma Commission on Children
12 and Youth shall issue a request for proposals on or before July 1,
13 2024, and July 1 of every third year thereafter for which the
14 Oklahoma Mentoring Children of Incarcerated Parents Program is
15 funded, seeking applications to administer the Oklahoma Mentoring
16 Children of Incarcerated Parents Program.

17 ~~2.~~ B. The Office of Management and Enterprise Services shall
18 work in conjunction with the Commission to coordinate a competitive
19 bid process.

20 ~~3.~~ C. The Commission, in coordination with the Office of
21 Management and Enterprise Services, shall review the applications
22 for compliance with the established requirements.

23 ~~4.~~ D. Entities eligible to submit applications to administer
24 the Oklahoma Mentoring Children of Incarcerated Parents Program

1 shall be limited to nonprofit organizations or programs which are
2 exempt from taxation pursuant to the provisions of Section 501
3 (c) (3) of the Internal Revenue Code, 26 U.S.C., Section 501 (c) (3)
4 and which otherwise meet the requirements set forth in ~~paragraph 5~~
5 subsection E of this section.

6 ~~5.~~ E. The Commission may approve an application that meets the
7 requirements set forth in this subsection and as established by the
8 Commission. The approved applicant or applicants shall provide ~~one~~
9 ~~to-one~~ mentoring services to children of incarcerated parents ~~who~~
10 ~~are in the custody of the Office of Juvenile Affairs and currently~~
11 ~~placed outside the home, or have been identified by the Office of~~
12 ~~Juvenile Affairs as~~ and to children at risk of becoming involved in
13 the juvenile justice system. The selected applicant or applicants
14 shall:

15 ~~a.~~ currently serve

16 1. Serve youth ages ~~6-18,~~

17 ~~b.~~ have six (6) through eighteen (18);

18 2. Have a statewide or regional presence~~;~~

19 ~~c.~~ currently provide one-to-one;

20 3. Provide mentoring services to children of incarcerated
21 parents~~;~~

22 ~~d.~~ have;

23 4. Have served children of incarcerated parents for ~~five (5)~~
24 three (3) years or more~~;~~

1 ~~e.~~ have;

2 5. Have rigorous volunteer application and screening processes,

3 ~~f.~~ have;

4 6. Have established child safety policies and procedures,

5 ~~g.~~ measure;

6 7. Measure performance outcomes via multiple tools,

7 ~~h.~~ ~~have five (5);~~

8 8. Have three (3) years or more of performance outcome data,

9 ~~i.~~ provide;

10 9. Provide ongoing safety training and diversity training for
11 program staff,

12 ~~j.~~ ~~have an established working relationship with the~~
13 ~~Office of Juvenile Affairs,~~

14 ~~k.~~ ~~set;~~

15 10. Set match-retention-rate goals,

16 ~~l.~~ have; and

17 11. Have experience working with high-risk populations, ~~and~~

18 ~~m.~~ ~~deliver contracted services at a cost no greater than~~
19 ~~One Thousand Five Hundred Dollars (\$1,500.00) per~~
20 ~~mentor-mentee match.~~

21 ~~6. On or before July 1, 2012, and each July 1 thereafter for~~
22 ~~which the Oklahoma Mentoring Children of Incarcerated Parents~~
23 ~~Program is funded, the Office of Juvenile Affairs may forward~~
24

~~applications that the Office of Juvenile Affairs has determined meet the requirements of this section to the Commission.~~

F. On or before November 1, ~~2012~~ 2024, and ~~each November~~ every third year thereafter for which the Oklahoma Mentoring Children of Incarcerated Parents Program is funded, the Commission shall award, through a competitive bid process, ~~one a grant to one applicant to provide one to one~~ or grants for the purpose of providing mentoring services to children of incarcerated parents who either are in the custody of the Office of Juvenile Affairs and currently placed outside the home or have been identified by the Office of Juvenile Affairs as and to children at risk of becoming involved in the juvenile justice system.

~~7. In addition to the grant funding, the Commission shall be authorized to provide other appropriate assistance to the selected applicant.~~

~~8.~~ G. The Commission shall be authorized to promulgate rules and establish procedures necessary to implement the provisions of this act.

~~9.~~ H. The Office of Management and Enterprise Services shall work with the Commission to implement the provisions of this act.

SECTION 3. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
OVERSIGHT, dated 02/25/2026 - DO PASS.